

Employee Services Residency Guideline 2024

The Service catalog helping to understand the residency process and requirements in Employee Services department, and it include Residence Visas, Civil Ids, local Transfers, Separation, NOC, attestations in MOFA – COM – Ministry of justice, Kuwait Engineering society KES and Commercial Visas. Employee Services.

Released date: 30/4/2024.
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Residency Renewal

Introduction: Residency renewal applies when the employee residency is near to expire, there is procedure for the renewal to be done in an official and legal way. (Any change in ministry regulation subject to modify the residency renewal process in ES.)

Process:

- Email trigger from TalentHub – SAP prior to 60 days of the residency expiry sent to recipients to start the process as per the internal residency renewal procedure.
- Employees or BU applies the residency renewal through TalentHub, through this services process will inquire the needed approval from HR Manager.
- Memo to start the residency Renewal process with PF number (**TalentHub**).

Requirements:

- CivilID copy.
- Passport copy.
- Degree copy attested translated (if applicable).
- Driving license copy (if applicable).
- Signed work contract with blue pen in second party.
- Be sure there are no traffic fines by visiting www.moi.gov.kw.
- Be sure all requirements and work contract sent as A4 size with PDF format and clear to read – ministry requirements).

Roles and responsibilities:

- All residence renewal requests must reach ES within the first 10 days of the 60 days notification prior to residence expiry, any delay, penalties apply 2KD per day for expiry residency. Residency fine payment can be paid by a business admin or employee online www.moi.gov.kw.
- All staff proceeding on leave must be notified about their residency renewal in advance of traveling on leave by BA.
- Residency renewal process takes approximately 14 working days (it's not related to the date of submitting the renewal request) and might get more based on the rules and regulations of Kuwait Authorities.
- Any change for title or salary needs to be updated in SAP officially and approved by BU HR and Head.
- Early renewal (residency validation more than 90 days) can be applied without and changing in title + salary (ministry role).
- 2KD fine apply for expired residency every day. (No exemptional days like holiday or off day).
- As per MOI new regulations, residency process will be held in MOI, in case there are any dues (payments) to the ministry.
- Daily residency report sent to BU's admins and HR, briefly viewed the residency status.
- ES Website providing work permit + MOI print out.

- On receipt of the information that residency is stamped, ES will post the following documents in the share folder ES website for the employees whose residency is stamped:
 - Work permit.
 - MOI residency printout.
 - Residency tracker in Excel Sheet for Following up.
- For early residency renewal (residency validation more than 90 days) needs (HR Manager) approval. Note: title and salary are not changeable.
- Requesting residency extension should be approved by HR Manager + Director, with decent reason.
- A list of special contracts employees will be kept with the ES Department and used to verify the employment status of concerned employees before processing their residency renewal requests. A formal reconciliation between the headcount file and MOSAL will be prepared annually.
- Formal process for the renewal of the residency of the special contract employees applied by business and approved by BU head and HR,
- Note: special contracts are not registered in SAP or Talenthub.
- The ES Department will issue a communication protocol to all BU HR Departments regarding the requests for the renewal of residency permits for separated employees.

No objection certificate - NOC:

BA provide NOC through IVANTI (approved by HR Manager + Business Director) for NOC processing, it usually takes between 20 to 25 working days and might get more based on the rules and regulations of Kuwait Authorities.

Requirements

- Clear Passport copy.
- Clear Degree copy + translation to Arabic if needed for higher titles.
- Driving license copy + translation to Arabic if needed for driver + Mandoub title.
- List of names and information in excel sheet - for bulk requests.

To get the visa processed at ministry system. There are some restrictions for certain nationalities, processing of visa might take longer.

Roles and responsibilities:

- BAs are fully responsible for providing complete + correct data and info with clear documents and be sure passport validity should not be less than 2 years and one month.
- Candidate must enter Kuwait within 90 days of eNOC issuing date.
- Once the eNOC is ready, ES will inform the business through **IVANTI** (Soft copy)
- No eNOC required for GCC Citizens, as they can enter Kuwait without visa for work.
- The process for reviewing and monitoring the NOCs allocated to BUs will be implemented.
- Approval for the transfer of the employee before the required period will be approved by CHRO except in cases where the directing was given from MOSAL.
- Justification for the delayed NOCs processed will be captured on the system.
- Copies for the NOCs issued, and the required approvals will be kept with the ES department.

First Time Residence

Introduction: Recruitment team in HR need to submit the following documents to ES between 7-10 calendar days of new employee from date arrival: (*Submission the documents is not related to any attestation*).

Requirements:

- Memo to start the residency process with PF number (**IVANTI**).
- Original passport + (2 passport copies – first page + entry date page).
- Original NOC + 3 copies two sides.
- Original police clearance attested by (Kuwait embassy and ministry of foreign affairs in the country of origin).
- Attested driving license certificate from country embassy with translation if (representative or driver).
- Degree (original + Copy) attested from (Ministry of Education + MOFA + Kuwait embassy attestation in the country of origin) if applicable.

Roles and responsibilities

- HR provide onboarded employees visa and passport copy during the residency process; employee must carry it all the time till his/her CivilID issued to prove their legal residence status in Kuwait.
- The process cycle time is 30 working days and might get more based on the rules and regulations of Kuwait Authorities.
Note: Residency must be stamped within 60 days of date of entry as per ministry rules, residency extension applies only when ES has issues with internal process or ministry system has issues or down. Residency extension doesn't apply for re-medical checkup.
- Any delay from business side implements residency fines amount 2KD per day also as same with ES if 60 days passed without stamping the residency.
- ES provides daily residency report supported with an internal website for extra information and support documents (Work permit + MOI print out + Tracker).

Medical & Fingerprint

- The process starts when ES sends an email to BA two-days prior for medical check and fingerprint exercise. Details of (Employees, Mandoub, Meeting Points-Location Date & Timings) for the medical and fingerprint check out are included in the mail.
- Transportation for medical & fingerprint should be arranged by the BA. he/she should ensure that the staff reaches the location (Fingerprint – Medical) at the agreed meeting point on time. (Skipping or ignoring the scheduled fingerprint and medical attendance will coz difficulty to re-schedule again with ministry system, this will extend the residency process timing and might apply residency fine that business will carry it).
- Business will provide at least one full day away from work for employees undergoing the medical and fingerprint examination. All employees must be dropped back at their place of work on completion of examination.
- The head of each of the CG centers, whose employees are undergoing tests should be informed by the BA that his employees will be away for medical and fingerprint tests.

Transfer of Residence for local Hires

Introduction: The recruitment team of CG sends ES the following documents through **IVANTI** to prepare the transfer documents after getting the confirmation from ES about residency transferability (online checkup – this exam will be viewed by the current sponsor):

- Residency transfer request with title and salary signed by HR Manager.
- Passport copy.
- Civil ID copy.
- Residency sequence report for MOI (if needed).
- Degree copy attested and translated (if needed).
- Kuwaiti driving license copy (if needed).

Upon employee joining, recruitment team must send ES the following to start the residency transfer process by email:

- Transfer documents signed by ex-employer using blue pen. (Only for article 17 Government sector & article 22 dependent residency must be provide original hard copy)
- Work permit copy.
- Passport and residency copy
- Civil ID Copy
- PF number
- Copy driving license if (driver)
- Copy degree (High education + ministry of foreign affairs + Kuwait embassy in the country of origin) + Kuwait ministry of foreign affairs, translation to Arabic and attestation from Kuwait ministry of justice) if applicable.
- Signed Work Contract with blue pen and converted to PDF colored format.

The process cycle time after receiving the transfer documents is 14 working days for article 18 and for article (17 & 22), might get more based on the rules and regulations of Kuwait Authorities.

Commercial Visit Visa - CVV:

Introduction: BA provides requirements below + submitted through **IVANTI**, period 7 days from the visitor arrival (approved by VP + HR Manager) processing duration takes 3 working days.

Requirements:

- Passport Copy (passport validity not less than six months and one week)
- Degree Copy + translation if need it.
- Or GCC residency with high title.

Roles and responsibilities

to get the visa processed at tire ministry. There are some restrictions for certain nationalities, processing of visas needs high approvals, and the process might take longer.

Degree copy with translation or GCC residency with high title required for Asian and Arabic nationalities.

- Each visit to Kuwait must not exceed 30 days from the day of arrival, otherwise penalty of K.D 10/- will be accrued for each day, if the visitor didn't exit Kuwait for one week and more after the 30 days in Kuwait, MOI will list the visitor and the company in the blacklist as per MOI CVV rules.
- No CVV required for GCC Citizens, as they can enter Kuwait without visa.

Residency Transfer to new passport

- BA requesting the transfer information through **TalentHub**:
- **Requirements:**
 - Original and copy of new passport.
 - Original and copy of old passport.
 - Civil ID copy.
 - 1 photo with blue background (Optional).
- HR / BA must check the employee status in MOI if he has any traffic violation and legal cases within Ministry of interior and Ministry of Justice through www.moi.gov.kw.
- Process cycle time is (5) working days from the date of receiving by ES.

Kuwaiti employees PIFSS registration

ES will work with HR to establish the guidelines for the registration of Kuwaiti employees for PIFSS including any exceptions.

ES will discuss with the HR department to update the procedures for registering the Kuwaiti employees.

Separation from Company:

Declarations

Introduction: At the time of leaving the company (Resignation or Termination), BA/HR should inform the employee to understand that he/she must transfer the residency to another company or request cancellation to leave Kuwait, after completing the clearance. Any delay on that will coz absconding case raised by the company against to the employee also residency fines in case the residency expired.

- Requesting residency extension must be approved by (HR Manager + Director) for separated employees.

Separation Employees

- ES will comply with the SLA in raising absconding cases after 60 days.
- Date during the month will be determined to verify the absconding individuals on AI sponsorship.
- All required documents (cancelled work permit, clearance form) will be uploaded in the ES department tracker.

CivilID

First time Civil ID for all overseas hires

Introduction: On getting notification that residence of employee is stamped, CivilID can process and submitted through PACI website, BA must prepare the required documents listed below to process the CivilID,

Note: Documents in jpeg format.

Requirements:

- Passport scan copy
- Personal photographs. (500 x 750) px.
- Work permit copy.
- House lease contract + PACI number.
- Blood Group.

BA should follow up the status of Civil ID using any of the following ways:

- Call 1889988 and follow the instructions.
- Visit www.paci.gov.kw go to E-Services Portal.
- It's the responsibility of the employee to follow up CivilID and collect it.

CivilID for Local Transfer for employees hired from Kuwait Market

Introduction: The local transfer process takes two weeks. BA follows up with ES whether residence of employee is stamped or not, BA should coordinate with ES to get residency information and advise the employee to renew the CivilID as stated below.

- Call 1889938 and follow the instructions.
- Visit www.paci.gov.kw to process the renewing CivilID.

It's the responsibility of the employee to process and follow-up CivilID and collect it.

Renewal of CivilID

Introduction: Once BA checked the residence status of employee is renewed, BA should coordinate with the concerned employees and support them in getting the CivilID renewed using any of the following two ways.

- Call 1889988 and follow the instructions.
- Visit www.paci.gov.kw to process the renewing CivilID.

It's the responsibility of the employee to follow up CivilID and collect it.

Note: As per Kuwait Authority, Kuwait Mobile ID app is accepted everywhere and for all processes

Documents Attestation

ES are responsible for the following services.

- Documents attestation for the ***first-time residency only*** (PCC Certificates – Work Contracts) in Ministry of foreign and affairs MOFA and chamber of commerce.
- Documents registration for engineer's title for the ***NOC – first time residency only*** in (KES Kuwait Engineering society) - (Academic Certificate – Colleague Certificate – Transcript Records – Member Certificate).
- Attestation in MOFA and chamber of commerce takes 3 to 5 days, and it might get more based on the rules and regulations of Kuwait Authorities.
- Registration in KES Kuwait Engineering society take 30 to 60 days, and it might get

more based on the candidate nationality and the rules and regulations of Kuwait Authorities.

- All attestations fees will be charged to the business cost center.

Note: ES is not responsible for embassies attestations and process, BA or employee must take this responsibility.

Driving License.

Level 8 and above.

- University certificate (minimum bachelor's degree) + translation if need
- Salary in work permit minimum 600KD.
- Original country driving license + attestation from forging embassy + MOFA.

Accountants and Mandoub title

- Salary in work permit minimum 600KD.
- Original country driving license + attestation from forging embassy + MOFA.

Engineers title

- Salary in work permit minimum 450KD.
- University certificate (minimum bachelor's degree) approved by KES + translation if need.
- Original country driving license + attestation from forging embassy + MOFA.

Driver title

- The title in the Work permit should be driver.
- Original country driving license + attestation from forging embassy + MOFA.

This is to illustrate that all the mentioned processes might be adjusted in the future based on the government regulatory framework and instructions. However, these are the solid base concerning the requirements of the processes.